



Haringey Corporation Act 1971

CHAPTER li

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ELIZABETH II



1971 CHAPTER li

An Act to make further provision for the local government, health and improvement of the London borough of Haringey; and for other purposes.

[27th July 1971]

WHEREAS—

(1) The London borough of Haringey (hereinafter called “ the borough ”) is a London borough under the management and local government of the mayor, aldermen and burgesses of the borough (hereinafter called “ the Corporation ”):

(2) It is expedient to make further provision with reference to the local government, health and improvement of the borough:

(3) It is expedient that the other provisions in this Act should be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51.
1963 c. 33. (5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 as applied by the London Government Act 1963 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title. 1. This Act may be cited as the Haringey Corporation Act 1971.

Interpretation. 2.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Public Health Act 1936 c. 49. 1936 c. 49. have the same respective meanings, unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires—

“ the borough ” means the London borough of Haringey;

“ the Corporation ” means the mayor, aldermen and burgesses of the borough.

“ the council ” means the council of the borough;

“ enactment ” includes an enactment in this Act or in any general or local Act or any order, byelaw, scheme or regulation for the time being in force within the borough.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

Parking of heavy vehicles, trailers and caravans.

3.—(1) In this section—

“ the appointed day ” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section;

“ caravan ” means any trailed caravan, van or other conveyance, of whatever length, constructed or adapted for use for human habitation;

“front” has the same meaning as in section 213 of the Highways Act 1959;

1959 c. 25.

“heavy vehicle” means a mechanically propelled vehicle having an unladen weight exceeding two and one half tons;

“night” means the interval between nine o’clock in the evening and seven o’clock in the morning of the next succeeding day or such other times as the council may determine;

“residential street” means a street, or part thereof, fronted on both sides either by premises which are predominantly residential in character or by such premises and schools or public open spaces;

“trailer” means a vehicle, not less than 10 feet in length, drawn by a motor vehicle.

(2) As from the appointed day, no person shall without the permission of a constable or of the Corporation or of an authorised officer of the Corporation cause or permit—

(a) a heavy vehicle or a trailer to wait in any residential street in the borough at night, or on a Sunday; or

(b) a caravan to wait in any residential street in the borough for more than one night in any week:

Provided that nothing in this subsection shall apply—

(a) so as to prevent a vehicle waiting in a residential street for so long as may be necessary to enable the vehicle, if it cannot conveniently be used for such purpose without waiting in that street, to be used in connection with any building operation or demolition, the removal of any obstruction or potential obstruction to traffic, the maintenance, improvement or reconstruction of the street or the erection, laying, placing, maintenance, testing, alteration, repair or removal of any structure, works or apparatus in, on, under or over the street;

(b) to a vehicle being used for fire brigade, ambulance, police or defence purposes (including civil defence purposes);

(c) to a vehicle waiting in a residential street while any gate or other barrier at the entrance to premises to which the vehicle requires access or from which it has emerged is opened or closed;

(d) to a vehicle waiting in a residential street while goods or materials are being loaded thereon or unloaded therefrom;

(e) to a public service vehicle as defined in section 117 of the Road Traffic Act 1960 in the ordinary course of its use as such; 1960 c. 16.

(f) to a vehicle waiting in any case where the person in control of the vehicle—

- (i) is required by law to stop;
- (ii) is obliged to do so in order to avoid an accident;
- or
- (iii) is prevented from proceeding by circumstances outside his control.

(3) No resolution shall be passed for the purposes of this section unless the Council are satisfied that there is in the borough a sufficient number of parking places available at night for the parking of heavy vehicles.

(4) Any person contravening the provisions of subsection (2) of this section shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty pounds or, in the case of a second or subsequent offence, fifty pounds.

(5) (a) The Corporation shall place conspicuous notices at places in the borough calling attention to the effect of this section, and the notices shall be in such number and places as in the opinion of the Corporation is sufficient for the purpose.

(b) Notices placed under the foregoing paragraph shall consist of such traffic signs as may be authorised for the purpose by the Secretary of State in pursuance of his powers contained in section 54 of the Road Traffic Regulation Act 1967.

1967 c. 76.

(6) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

- (a) of the passing of any resolution to fix the appointed day and of the day fixed thereby; and
- (b) of the general effect of the provisions of this section coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(7) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk of the borough to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

Removal of
vehicles for
street
cleansing.

4.—(1) Where in any street in the borough there exists, in the opinion of the Corporation, a danger to health or a serious detriment of the amenities, and where such danger or detriment is

caused by the inability of the Corporation to cleanse the street adequately by reason of the vehicles parked thereon, the Corporation may, after giving notice in accordance with this section—

- (a) move a vehicle, on such street which is to be cleansed by them on that day, to another position on that or another street; or
- (b) remove a vehicle from such street which is to be cleansed by them on that day to a place which is not on that or any other street.

(2) Notice shall be given in accordance with the foregoing subsection by—

- (a) not less than seven days before the proposed day of cleansing, serving written notice on the owner or occupier of every premises fronting the street; and
- (b) not less than twenty-four hours before the cleansing commences, posting conspicuous notices in the street.

(3) The notice shall state the date upon which it is intended that the cleansing shall take place and the general effect of this section.

(4) Where a vehicle is removed in pursuance of paragraph (b) of subsection (1) of this section, the following provisions shall apply:—

- (a) The Corporation shall be entitled to recover from any person responsible—
 - (i) five pounds in respect of the removal of the vehicle; and
 - (ii) fifty new pence in respect of any day or part of a day during which the vehicle is in the custody of the Corporation; and
 - (iii) where the vehicle is disposed of in pursuance of paragraph (c) of this subsection, two pounds in respect of its disposal:
- (b) Any sum recoverable by virtue of this subsection shall be recoverable as a simple contract debt in any court of competent jurisdiction:
- (c) Subject to paragraph (d) of this subsection, the Corporation may in such manner as they think fit, dispose of any vehicle which is in their custody in pursuance of this subsection at any time after they have taken all reasonable steps to find a person appearing to them to be the owner of the vehicle and either—
 - (i) they have failed to find such a person; or

(ii) he has failed to comply with a notice served on him by them requiring him to remove the vehicle within the prescribed period from their custody;

but not earlier, in a case where it appears to them that a licence is in force in respect of the vehicle, than the expiration of the licence:

(d) If before a vehicle is disposed of by the Corporation in pursuance of the last foregoing paragraph the vehicle is claimed by a person who satisfies them that he is its owner and pays to them such sums in respect of its removal and storage as are payable under paragraph (a) of this subsection, the Corporation shall permit him to remove the vehicle from their custody; and if before the expiration of the period of one year beginning with the date on which a vehicle is sold by them in pursuance of this subsection any person satisfies them that at the time of its sale he was the owner of the vehicle, the Corporation shall pay over to him any sum by which the proceeds of sale exceed the aggregate of such sums in respect of the removal, storage and disposal of the vehicle as are payable under paragraph (a) of this subsection:

(e) If in the case of any vehicle it appears to the Corporation that more than one person is or was its owner at the relevant time, such one of them as the Corporation think fit shall be treated as its owner for the purposes of paragraph (d) of this subsection:

(f) In this subsection “ person responsible ”, in relation to a vehicle means—

(i) the owner of the vehicle at the time when it was put in the place from which it was so removed, unless he shows that he was not concerned in and did not know of its being put there; or

(ii) any person by whom it was put in the place aforesaid:

(g) In this subsection “ the prescribed period ” means the period prescribed by the Secretary of State for the purposes of section 21 (1) (c) (ii) of the Civic Amenities Act 1967.

1967 c. 69.

Supply of
gas and
electricity to
premises where
supply cut off.

5.—(1) Where an occupied house in the borough has ceased to be supplied with gas or electricity sufficient for the domestic purposes of the occupants, being tenants or lessees of the house or part thereof, by reason of any act or omission of the owner, the Corporation may, without prejudice to any action or proceedings which they may take under any other enactment make such

payment to the appropriate statutory undertaker as may be necessary to secure that the supply of gas or electricity to the house is restored, and may recover the expenses reasonably incurred by them in so doing from the owner of the house.

(2) In any proceedings for the recovery of expenses under the preceding subsection the court may inquire whether the whole or any part of the expenses should instead of being borne by the person from whom they are sought to be recovered be borne by the occupier of the premises in respect of which they were incurred and the court may make such order as appears to it to be just in the circumstances of the case with respect to the person (being either the person from whom the expenses are sought to be recovered or such an occupier as aforesaid) by whom the expenses are to be borne or as to the apportionment between any such persons of their liability to bear the expenses:

Provided that the court shall not under this subsection order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings, unless the court is satisfied that that other person at the instance of the defendant has had due notice of the proceedings and an opportunity of being heard.

(3) Where the Corporation make a payment under this section that payment shall, until recovered, be a charge on the premises and on all estates and interests therein, and the Corporation shall, for the purpose of enforcing a charge under this section, have all the same powers and remedies under the Law of Property Act 1925, and otherwise as if they were mortgagees by deed 1925 c. 20. having powers of sale and lease, of accepting surrenders of leases and of appointing a receiver.

(4) The Corporation may if they think fit themselves bear the whole or any part of any expenses recoverable under this section.

6.—(1) The Corporation may borrow—

Power to
borrow.

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Local Government Act 1933 shall have effect as if money borrowed 1933 c. 51. under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

- 1946 c. 58. (3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.
- Restriction on right to prosecute. 7. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation.
- Powers of Act to be cumulative. 8. All powers and duties conferred or imposed by this Act shall be deemed to be in addition to and not in derogation of any other powers and duties conferred or imposed by any enactment, law or custom and, subject to any express provision of this Act, all such other powers and duties may be exercised and shall be performed in the same manner and as if this Act had not been passed.
- Costs of Act. 9. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

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